

24NNCV05999 24NNCV05999

County: los-angeles

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Case Number: 24NNCV05999 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION NAME

Hearing Date: 06/26/2026

CASE NO./NAME: 24NNCV05999 Leonel W.F. Perez v.

Richard Rappaport, et al.

Moving Party: Plaintiff,

Leonel W.F. Perez

Responding Party: N/A

Notice: Sufficient

Ruling: GRANT

and award \$1,350 in sanctions.

BACKGROUND

This action is a personal injury case arising from an incident on January 16, 2024, in which Leonel W.F. Perez ("Plaintiff") fell from scaffolding while working on the property located at 10900 Blix Street, Toluca Lake, CA 91602 which was owned and operated by Richard Rappaport and 10900 Blix, LLC (collectively "Defendants"). On November 21, 2024, Plaintiff filed a complaint against Defendants alleging causes of action for negligence and premises liability.

On April 13, 2026, Plaintiff filed the instant Motion to Compel Responses to: Form Interrogatories, Set One ("FROGs"), Special Interrogatories, Set One ("SROGs"), Requests for Production, Set One ("RPDs"), and Requests for Admissions ("RFAs"). Plaintiff also moves the Court to award sanctions against Defendants and their counsel in the amount of \$2,700.

As of June 22, 2026, no opposition has been filed.

PROCEDURAL ISSUES

Plaintiff's Motion improperly combines four motions into one: (1) the Motion to Compel Initial Responses to FROGs, and (2) the Motion to Compel Initial Responses to SROGs (3) the Motion to Compel Initial Responses to RPDs, and (4) the Motion to Deem RFAs Admitted.

In the future, Plaintiff is ordered to obtain separate hearing reservations and pay separate filing fees. Combining four motions under the guise of one motion with one hearing reservation manipulates the Court Reservation System and unfairly jumps ahead of other litigants. Moreover, combining motions to avoid payment of filing fees deprives the Court of filing fees it is otherwise entitled to collect.

Be that as it may, since these motions are unopposed, and in the interest of efficiency, the Court will exercise its discretion to hear both motions.

However, Plaintiff must pay an additional \$180.00 in filing fees.

LEGAL STANDARD

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to

whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.)

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product...” (Code Civ. Proc., § 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes: “(d) failing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010, subd. (d).) Reasonable expenses under Code of Civil Procedure section 2023.030, subdivision (a) include the time spent in researching and preparing the motion, as well as court time and travel time spent in connection with the motion. (Ghanooni v. Super Shuttle, (1993) 20 Cal.App.4th 256, 262.)

DISCUSSION

Motions to Compel

On January 15, 2025, Plaintiff propounded FROGs, SROGs, and RPDs, and RFAs upon Defendants Richard Rappaport and 10900 Blix LLC with responses due on February 17, 2026. (Gezoukian Decl., ¶¶ 3, 5.) On February 23, 2026, Plaintiff’s counsel sent a letter to Defendants’ counsel.

(Gezoukian Decl., ¶ 5, Ex. 3.) On February 24, 2025, Defendants' counsel requested a thirty-day extension of March 26, 2026, to allow them to respond to the requests. (Gezoukian Decl., ¶ 6, Ex. 3.) Plaintiff's counsel then granted Defendants' counsel another extension making the responses due on April 9, 2026. (Gezoukian Decl., ¶ 6.) Defendants did not serve responses. (Gezoukian Decl., ¶ 6.) The Court finds that service on Defendants was proper.

Therefore, the Motions to Compel are
GRANTED and the Motion to Deem RFAs admitted is GRANTED.

Sanctions

Plaintiff requests sanctions be
awarded against Defendants' and their counsel in the amount of \$2,700.
Plaintiff's counsel declares he spent two hours drafting the instant motion and anticipates spending 2 hours in reviewing the opposition and preparing a reply at a rate of \$675 per hour. (Gezoukian Decl., ¶ 7.)

The Court finds that Plaintiff's counsel's
hourly rate is reasonable. However, given there was no opposition filed, the Court declines to award sanctions for anticipated work in reviewing an opposition and preparing a reply. Therefore, the request for sanctions is GRANTED in the reduced amount of \$1,350 consisting of two hours of work on the instant motion at a rate of \$675 per hour.

CONCLUSION AND ORDER

Plaintiff's
Motion to Compel Responses to FROGs, SROGS, and RPDs is GRANTED.

Plaintiff's Motion
to Deem the Truth of Matters Specified in Requests for Admission to is GRANTED. The court orders that the truth of the matters specified in the Requests for Admissions, Set One are deemed admitted.

\$1,350 in
sanctions are awarded against Defendants and their counsel.

MOVING

PARTY shall provide notice of this order.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court